

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402526	JUAREZ VS WETTER	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

The motion is granted with conditions. Plaintiff is ordered to file and serve his proposed Second Amended Complaint ("SAC") forthwith within five (5) days. The proposed Second Amended Complaint is NOT deemed to be filed and served as of the date the motion is granted; it must be filed separately. Thereafter, Defendants are ordered to file and serve their answer or other responsive pleading within ten (10) days.

Defendants' motion for summary judgment presently pending hearing set for September 30, 2026, is vacated. The mandatory settlement conference has already been continued to September 23, 2026, at 3:00 p.m. The present trial date is continued to December 18, 2026, at 10:00 a.m. to allow Defendants to conduct discovery limited to the new allegations alleged in the proposed SAC and have the opportunity to file a dispositive motion on the new pleading.

"If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it has been held as an error to refuse permission to amend and where the refusal also result in a party being deprived of the right to assert a meritorious cause of action." (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) Here, Plaintiff has made a timely motion seeking leave to amend to conform his pleading accordance with new evidence obtained through discovery. However, the new allegations, contrary to what Plaintiff claims, will result in enlarging the constitutional rights involved and theories of liabilities against Defendants to some degree, and Defendants would be required to defend against these new claims. Therefore, the motion is granted but with conditions. Where some prejudice is shown, the court is authorized to grant leave "on such terms as may be proper." (Code Civ. Proc., § 473(a)(1), 576.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505899	DOE VS DOE 1	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

The motion to file a Second Amended Complaint is granted. Plaintiff is ordered to file the SAC within ten (10) days. The proposed Second Amended Complaint is NOT deemed to be filed as of the date the motion is granted; it must be filed separately. The time for responding to the SAC shall be computed from the date of service of the SAC and Summons.